IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(*through* Hybrid Mode)
COURT-I

Item No.102

RST.A(COMPANIES ACT)/6(CH)2024
In
CA(CAA) No. 46/Chd/Pb/2019
(1st Motion)
(Disposed of on 05.04.2024)

IN THE MATTER OF:

Ashish Mohan Gupta …. Transferor Company

And

Hind Motors Mohali Pvt. Ltd. …. Transferee Company

Under Section: 230-232, CA 2013, Rule 11 of NCLT

Order delivered on 17.10.2025

CORAM:

SH. SHISHIR AGARWAL
HON'BLE MEMBER (T)

SH. K. BISWAL
HON'BLE MEMBER (J)

PRESENT:

For the applicant : Mr. Vikas Kuthiala, Advocate

For the respondent/liquidator : Mr. Kamal Satija, Advocate

ORDER

RST. A(COMPANIES ACT) No.6/2024

Mr. Vikas Kuthiala, ld. counsel for the applicant attends and states that this plea has been filed for restoration of the main CA of first motion under Section 230-232, CA 2013.

Mr. Kamal Satija, ld. counsel for the liquidator attends and opposes the application for restoration.

Heard. Issue notice to the respondent. Mr. Kamal Satija, Advocate on behalf of the respondent is ready to accept the notice and requested a date for filing the reply. Let the same be filed within two weeks with a copy in advance to the counsel opposite. Rejoinder thereto if any, be filed within one week thereafter with a copy in advance to the counsel opposite. List on 28.11.2025.

Sd/-
(SHISHIR AGARWAL)
MEMBER (T)

Sd/-
(K. BISWAL)
MEMBER (J)

PBS